RESOLUTION NO. 2026 - F

A RESOLUTION OF THE BOARD OF DIRECTORS OF THE CALIFORNIA PINES COMMUNITY SERVICES DISTRICT, APPROVING THE CALIFORNIA PINES COMMUNITY SERVICES DISTRICT SERVICES SPECIAL PARCEL TAX MEASURE, WHICH WOULD INCREASE THE DISTRICT'S SPECIAL PARCEL TAX FOR DISTRICT SERVICES FROM $66 TO $116 PER YEAR FOR EACH PARCEL ON WHICH THE TAX IS LEVIED, AND ORDERING THE SUBMITTAL OF SAID MEASURE TO THE VOTERS AT THE GENERAL DISTRICT ELECTION TO BE HELD ON NOVEMBER 3, 2026

WHEREAS, the California Pines Community Services District ("District") provides community services district services to parcels of real property in Lake Units 1B, 3, and 4, and the Mobile Home Park of the District (collectively, the "CSD Area"), including maintaining the water, and wastewater systems, collecting solid waste, vector control and plowing and maintaining roads ("Services"); and

WHEREAS, the District wants to continue to provide Services for District residents in the CSD Area at the levels they expect and deserve; and

WHEREAS, due to inflation and rising costs, and the fact that existing local tax rates have not been increased to account for inflation, the amount of revenue available to the District from the existing District special parcel tax on parcels in the CSD Area is inadequate to fund the costs of Services that District residents expect; and

WHEREAS, without additional local funds, the District may be forced to make cuts to the Services; and

WHEREAS, if approved by the voters, the revenue from this measure will be subject to transparency and accountability provisions, such as financial audits and annual collection and expenditure reports; and

WHEREAS, the Board of Directors ("Board") proposes to submit to the voters of the District an Ordinance providing for the levy of an increased special parcel tax for nonexempt parcels in the CSD Area to fund the Services.

NOW, THEREFORE, the Board of Directors of the California Pines Community Services District hereby finds, determines, orders, and resolves as follows:

Section 1. The facts set forth in the recitals of this Resolution are true and correct, and establish the factual basis for the Board's adoption of this Resolution.

Section 2. By Resolution No. 2026-E, adopted on June 24, 2026, the Board has previously called and given notice of the General District Election to be held in the District on November 3, 2026, and to be consolidated with the Statewide General Election being conducted on the same date.

Section 3. The Board held a duly-noticed public hearing on this proposed measure on June 24, 2026. Pursuant to Government Code Section 50077, the Board hereby orders that at the said General District Election on November 3, 2026, a Special Parcel Tax Ordinance for Community Services District Services be submitted to the voters for approval. The full text of the District Special Parcel Tax Ordinance is attached to this Resolution as Exhibit A and incorporated herein by reference. The measure to be submitted to the voters shall appear and be printed on the ballot as follows:

California Pines Community Services District Services Special Parcel Tax Measure	
Shall the ordinance be adopted to provide additional annual revenue for community services district services, including power, water, and wastewater systems, collecting solid waste, and plowing and maintaining roads, by increasing the annual special parcel tax for the California Pines Community Services District from $66 to $116 on each nonexempt parcel in Lake Units 1B, 3, and 4, and the Mobilehome Park, generating approximately $98,000 a year, until ended by voters?	YES
	NO

Section 4. The Board hereby approves the proposed District Special Parcel Tax Ordinance, attached to this Resolution as Exhibit A, to be submitted to the voters. The proposed measure is a special tax, as defined in Article XIIIC of the California Constitution, to be collected by the Modoc County Tax Collector, at a rate of $116 per fiscal year for each parcel on which the tax is levied. The Ordinance shall not take effect unless and until approved by a vote of at least two-thirds of voters voting on the question at the election.

Section 5. It is the intent of the Board that the measure hereby submitted to the voters is an amendment of an existing Special Tax, which shall remain in full force and effect if the measure submitted is not approved by the requisite number of voters.

Section 6. The Board directs that arguments for and against the measure may be filed in accordance with applicable law, and that Board Members are authorized to file an argument in favor of the measure. Rebuttal arguments shall not be permitted.

Section 7. In all particulars not recited in this Resolution, the election shall be held and conducted as provided by law for holding district elections. All persons qualified and registered to vote in the District as of the date of such election shall be entitled to vote.

Section 8. Notice of the time and place of holding the General District Election is hereby given and the Secretary, in cooperation with the County Registrar of Voters, is authorized, instructed, and directed to give further or additional notice of the election, in

the time, form and manner as required by law, and to publish a synopsis of the measure as required by law.

Section 9. The Secretary is hereby directed to submit a certified copy of this Resolution to the Modoc County Registrar of Voters and to the Modoc County Board of Supervisors.

Section 10. The Chair of the Board of Directors shall sign and the Secretary shall attest to the adoption of this Resolution.

PASSED, APPROVED, AND ADOPTED this 24th day of June, 2026 by the following vote:

AYES: 4 BOARD MEMBERS: Kelly, Orrin

NOES: 0 BOARD MEMBERS: Kelly, Terry

ABSENT: 0 BOARD MEMBERS: King, Tim

ABSTAIN: 0 BOARD MEMBERS: _____

William Rodgers

William Rodgers, Board Chair

ATTEST:

Louise Waldron

Louise Waldron, Secretary

EXHIBIT A

ORDINANCE NO. 2026-i

AN ORDINANCE OF THE VOTERS OF THE CALIFORNIA PINES COMMUNITY SERVICES DISTRICT APPROVING AN INCREASE OF THE DISTRICT'S SPECIAL PARCEL TAX FROM $66 PER YEAR TO $116 PER YEAR FOR EACH PARCEL ON WHICH THE TAX IS LEVIED TO FINANCE COMMUNITY SERVICES DISTRICT SERVICES

THE PEOPLE OF THE CALIFORNIA PINES COMMUNITY SERVICES DISTRICT DO ORDAIN AS FOLLOWS:

Section 1. Authority.

Pursuant to the authority of Government Code Sections 61121(a) and 50075 *et seq.*, and other applicable law, an increased special parcel tax is hereby levied by the California Pines Community Services District ("District"), for each fiscal year, on all nonexempt parcels of real property in Lake Units 1B, 3, and 4, and the Mobile Home Park of the District (collectively, the "CSD Area"). It is the sole purpose and intent of this Ordinance to impose an increased special parcel tax for the specific purpose of maintaining and improving the current level of community services district services in the CSD Area, including maintaining the water and wastewater systems, collecting solid waste, vector control, and plowing and maintaining roads.

Section 2. Special Parcel Tax Increased.

For the purpose specified in Section 1 of this Ordinance, the District's special parcel tax shall be increased from $66 per year to $116 per fiscal year (the period beginning July 1 and ending the following June 30) for each nonexempt parcel of real property in the CSD Area, commencing with fiscal year 2027-2028.

Section 3. Special Fund, Use of Tax Proceeds.

The proceeds of the special parcel tax imposed by this Ordinance shall be placed in a special fund, which shall be created and designated the California Pines Community Services District Services Special Parcel Tax Fund, and shall be applied by the Board of Directors only for the purpose of providing community services district services the District provides to its residents and property owners in the District.

Section 4. Collection.

The special parcel tax imposed by this Ordinance shall be collected in the same manner, on the same dates, and shall be subject to the same penalties and interest as other charges and taxes fixed and collected by Modoc County on behalf of the District. The Modoc County Tax Collector may deduct reasonable administrative costs incurred in collecting the special parcel tax before remittal of the balance to the District. The special parcel tax, together with all penalties and interest thereon, shall constitute a lien upon the parcel upon which it is levied until it has been paid, and said special parcel tax, together with all penalties and interest thereon, shall, until paid, to the

extent authorized by law, constitute a personal obligation to the District by the persons who own the parcel on the date the tax is due.

Section 5. Amendment and Implementation.

The Board of Directors of the District shall be empowered, by an affirmative vote of at least a majority of its members, to amend this Ordinance to carry out the general purposes of this Ordinance, to conform the provisions of this Ordinance to applicable state law or any paramount law, to modify the methods of collection, or to assign the duties of public officials under this Ordinance.

In no event shall the Board of Directors of the District amend this Ordinance to increase the maximum amount of the special parcel tax established in Section 2 of this Ordinance, unless approved by two-thirds of the voters voting thereon.

The Board of Directors of the District, by resolution, may adopt procedures or definitions for the implementation or administration of the special parcel tax.

Section 6. Exemptions.

The special parcel tax shall not be imposed upon any parcel that is exempt from the special parcel tax pursuant to any provision of the United States Constitution, California Constitution, California State law, or any paramount law, or upon any parcel that is not within the CSD Area. The Board of Directors of the District, by resolution, may adopt additional exemptions to the special parcel tax imposed by this Ordinance.

Section 7. Appropriations Limit.

The appropriations limit of the District established under Article XIIIB of the California Constitution shall be increased by the proceeds received from the special tax imposed by this Ordinance.

Section 8. Annual Report.

The chief fiscal officer of the District shall annually file with the Board of Directors of the District a report regarding the amount of special parcel tax revenues collected and expended and the status of any project required or authorized to be funded with the special parcel tax revenues, as required by Government Code Section 50075.3, as such law may be amended from time to time.

Section 9. Independent Compliance Audit.

By no later than December 31 of each year, commencing on December 31, 2027, independent auditors shall review whether the tax revenues collected pursuant to this Ordinance are collected, managed and expended in accordance with the requirements of this Ordinance. This audit may be conducted in conjunction with the District's annual audit.

Section 10. Severability.

If any provision of this Ordinance or the application thereof to any person or circumstances is held invalid or unconstitutional by any court of competent jurisdiction, such invalidity or unconstitutionality shall not affect any other provision or applications, and to this end each of the provisions of this Ordinance are declared to be severable. The Board of Directors of the District, and the electorate by adoption of this Ordinance, do hereby declare that they would have adopted this Ordinance and each section, subsection, sentence, clause, phrase, part or portion thereof, irrespective of the fact that any one or more sections, subsections, clauses, phrases, parts or portions thereof, be declared invalid or unconstitutional.

Section 11. Effective Date.

This Ordinance shall be adopted and become effective ten days following adoption, only if adopted by at least two-thirds of the voters voting thereon, at an election to be held on November 3, 2026.

Section 12. Duration of Special Parcel Tax.

The authority to levy the special parcel tax annually shall remain in effect unless a later ordinance is adopted and approved by two-thirds of the voters of the District voting thereon that either repeals the special parcel tax or establishes a date that the authority to levy the special parcel tax shall terminate.

Section 13. Attestation.

The Chair of the Board of Directors of the District is hereby authorized to attest to the adoption of this Ordinance by the voters of the District by signing where indicated below.

I hereby certify that the foregoing Ordinance was PASSED, APPROVED AND ADOPTED by the requisite number of voters of the California Pines Community Services District voting on the 3rd day of November, 2026.

By:

_____

Board Chair
California Pines Community Services District

ATTEST:

_____

Secretary